

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2025PRCE047743: IN THE MATTER OF ELYN HOMES

06/23/2026 in Department J6

**Hearing on Petition Elyn Homes' Brief for Removal of Successor Trustees and Petition to
Invalidate Estate Plan**

The 2025 estate planning documents were signed 09/30/25 after a physician found Ms. Homes lacked capacity for medical decisions, and after the conservatorship matter was filed (filed 07/25/25). The VCPG was appointed temporary conservator of the person and estate on 10/17/25.

The court concludes that Elyn Homes did not have capacity to execute the estate planning documents dated 09/30/25 and orders those documents invalid.

As to the 2024 estate planning documents, the court intends to set an evidentiary hearing as to capacity and undue influence.

The clerk shall give notice.